

SENATE BILL 1266

By Johnson

AN ACT to amend Tennessee Code Annotated, Title 37;
Title 49 and Title 55, relative to department of
children's services programs.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 37-2-604(d), is amended by deleting the language "twenty-first" and substituting "twenty-third".

SECTION 2. Tennessee Code Annotated, Section 37-2-604(c), is amended by deleting the subsection and substituting:

(c) The extension of foster care services may be provided on a voluntary basis to a young adult who was in the custody of the department at the time of the young adult's eighteenth birthday or a young adult who was adopted from, or approved for subsidized permanent guardianship by, the department and was at least sixteen (16) years of age but less than eighteen (18) years of age at the time of adoption or approval for subsidized permanent guardianship. A young adult who satisfies either criterion may, from eighteen (18) years of age until twenty-three (23) years of age, receive extension of foster care services if the young adult is:

- (1) Completing secondary education or a program leading to an equivalent credential;
- (2) Enrolled in an institution that provides postsecondary or career or technical education;
- (3) Participating in a program or activity designed to promote employment or remove barriers to employment;
- (4) Employed for at least eighty (80) hours per month; or

(5) Incapable of doing any of the activities in subdivisions (c)(1)-(4) due to a medical condition, including a developmental or intellectual condition, which inability is supported by regularly updated information in the young adult's permanency plan. In such a case, the young adult must be in compliance with a course of treatment as recommended by the department.

SECTION 3. Tennessee Code Annotated, Section 37-2-604(e)(4), is amended by deleting the subdivision and substituting:

(4) If the young adult did not achieve permanency through adoption or subsidized permanent guardianship, attend a court hearing or administrative review every six (6) months until reaching twenty-one (21) years of age.

SECTION 4. Tennessee Code Annotated, Section 49-7-179, is amended by deleting "a minimum of five (5) public institutions" and substituting "participating institutions" and by deleting "public" wherever it appears and substituting "participating".

SECTION 5. Tennessee Code Annotated, Section 49-7-179, is amended by deleting subsection (d).

SECTION 6. Tennessee Code Annotated, Section 55-50-312, is amended by deleting subsection (h) and substituting:

(h) A person must not be charged a fee for issuance, renewal, or reinstatement of a driver license, instruction permit, intermediate driver license, or photo identification card if the person's application is accompanied by evidence that the person is:

(1) Under eighteen (18) years of age and in the custody of the department of children's services; or

(2) Receiving services under the department of children's services extension of foster care program or juvenile justice programs.

SECTION 7. This act takes effect July 1, 2025, the public welfare requiring it.